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Case Number: 25STCV23843 Hearing Date: June 23, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

ANTREAS HINDOYAN

;

Plaintiff,

vs.

UNIVERSITY OF SOUTHERN

CALIFORNIA, UNIVERSITY OF SOUTHERN CALIFORNIA MEDICAL CENTER

, et al.;

Defendants.

Case

No.:

25STCV23843

Hearing

Date:

June

23, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

UNIVERSITY OF SOUTHERN CALIFORNIA, VIVIAN Y.

MO, M.D., USC VERDUGO HILLS HOSPITAL, AND USC CARE MEDICAL GROUP, INC.'S

motion TO COMPEL ARBITRATION AND STAY JUDICIAL PROCEEDINGS

MOVING PARTY: Defendants University of

Southern California, Vivian Y. Mo, M.D., USC Verdugo Hills Hospital, and USC

Care Medical Group, Inc.

RESPONDING PARTY: Plaintiff Antreas Hindoyan

Motion to Compel Arbitration

The court

considered the moving, opposition, and reply papers filed in connection with

this motion.

REQUEST FOR JUDICIAL NOTICE

The court grants plaintiff Antreas Hindoyan's

(Plaintiff) request for judicial notice of the published opinion in Cook v.

University of Southern California (2024) 102 Cal.App.5th 312 (Exhibit 1)

and the published opinion in Ramirez v. Charter Communications, Inc.

(2024) 16 Cal.5th 478 (Exhibit 2), pursuant to Evidence Code section 452

subdivision (d).

The court denies Plaintiff's

request for judicial notice of the "Agreement to Arbitrate Claims" signed by

Pamela Cook on May 7, 2021, which was the arbitration agreement at issue in Cook

v. University of Southern California (2024) 102 Cal.App.5th 312,

DISCUSSION

Defendants University of Southern California ("USC"), Vivian Y. Mo,

M.D. ("Dr. Mo"), USC Verdugo Hills Hospital, and USC Care Medical Group, Inc. (collectively,

"Defendants") move the court for an order compelling Plaintiff to submit the

claims alleged in his Complaint to binding arbitration.

1.

Applicability of the Federal

Arbitration Act

The court finds that Defendants have met their burden to show that the Federal Arbitration Act (9 U.S.C. § 1 et seq.) (the "FAA") governs this motion. (Evenskaas v. California Transit, Inc. (2022) 81 Cal.App.5th 285, 292 ["The party asserting the FAA applies to an agreement has 'the burden to demonstrate FAA coverage by declarations and other evidence'"] [internal citations omitted].)

The Agreement to Arbitrate Claims provides that "[t]he Federal Arbitration Act shall govern the interpretation, enforcement, and all proceedings pursuant to this Agreement." (Declaration of Judy Garner, Ph.D. ("Garner Decl."), ¶ 4; Ex. A, p. 2.) The court finds that this language is sufficient to incorporate both the substantive and procedural provisions of the FAA. (Victrola 89, LLC, supra, 46 Cal.App.5th at pp. 345, 355 ["the presence of interstate commerce is not the only manner under which the FAA may apply[;]" "the parties may also voluntarily elect to have the FAA govern enforcement of the" arbitration agreement].)

The court, however, notes that it applies general California contract law to determine the existence of an arbitration agreement between the parties. (Mar v. Perkins (2024) 102 Cal.App.5th 201, 212, ["[T]he existence of an enforceable arbitration agreement is established under state law principles involving formation, revocation and enforcement of contracts generally”] [internal quotation marks and citations omitted]; Weeks v. Interactive Life Forms, LLC (2024) 100 Cal.App.5th 1077, 1089 [“The FAA ordinarily defers to state law on questions of contract formation, unless state law fails ‘to place arbitration agreements “on equal footing with all other contracts”’”].)

2.

Existence of Agreement to Arbitrate

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists[,]” unless the court finds that the right to compel arbitration has been waived by the petitioner or that grounds exist for rescission of the agreement.¿ (Code Civ. Proc., §¿1281.2.)¿¿¿¿¿¿

“‘ “The party seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement’s enforcement.” ’” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302.) To determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting process.” (Iyere v. Wise Auto Group (2023) 87

Cal.App.5th 747, 755.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement.¿ [Citations.] A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’”¿ (Ibid. [internal citations omitted].)¿ “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence . . . .”¿ (Ibid.)¿ If the opposing party meets its burden to “submit sufficient evidence to create a factual dispute” as to the existence of the agreement, the burden shifts back to the arbitration proponent, who retains the ultimate burden of proving its existence by a preponderance of the evidence.¿ (Ibid.; Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-166.)¿¿¿¿

First, the court finds that Defendants have met their initial burden of showing that an agreement to arbitrate between Plaintiff and Defendants exists. (Iyere, supra, 87 Cal.App.5th at p. 755.) Defendants have presented the “Agreement to Arbitrate Claims” (the “Arbitration Agreement”) which (1) purports to bear Plaintiff’s electronic signature through DocuSign and (2) states that, “the University and the faculty or staff member named below ('Employee') agree to the resolution by arbitration of all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities. . . ." (Garland Decl., Ex. A.) Defendants have also shown that the Arbitration Agreement encompasses Plaintiff's claims against Defendants because it requires arbitration of "all claims, whether or not arising out of Employee's University employment, remuneration or termination" and Plaintiff's six causes of action arise out of his employment with Defendants because they are based on sex and gender and race and ancestry/national origin discrimination under FEHA, retaliation under FEHA and Labor Code section 1102.5, and a hostile work environment claim against Defendant Vivian Y. Mo, MD.

Second, the court finds that Plaintiff has not met his burden to identify a factual dispute as to the authenticity of the Arbitration Agreement, including because he does not dispute that he signed the Arbitration Agreement. (Iyere, supra, 87 Cal.App.5th at p. 755.) Plaintiff only asserts that he was not given a meaningful opportunity to negotiate the terms of the Arbitration Agreement, and the significance of the Arbitration Agreement was not explained to him.

(Declaration of Antreas Hindoyan (“Hindoyan Decl.”), ¶¶ 3-4.)

3.

Defense of Unconscionability

Plaintiff contends that the Arbitration Agreement is unenforceable because it is unconscionable.

“‘[A]greements to arbitrate [may] be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” ’”¿ (Beco, supra, 86 Cal.App.5th at p. 302.)¿ “The burden of proving unconscionability rests upon the party asserting it.”¿ (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 126.)¿ “Unconscionability entails an absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party.”¿ (Iyere, supra, 87 Cal.App.5th at p. 759 [internal quotations omitted].)¿ “Both procedural and substantive unconscionability must be shown for the defense to be established, but ‘they need not be present in the same degree.’”¿ (Kho, supra, 8 Cal.5th at p. 125.)¿

i.

Procedural Unconscionability

“Procedural unconscionability pertains to the making of the agreement . . . .”¿ (Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 795.)¿ It "“focuses on two factors: ‘oppression’ and ‘surprise.’¿

[Citations.]¿ ‘Oppression’ arises from an inequality of bargaining power which

results in no real negotiation and ‘an absence of meaningful choice.’

[Citations.]¿ ‘Surprise’ involves the extent to which the supposedly

agreed-upon terms of the bargain are hidden in the prolix printed form drafted

by the party seeking to enforce the disputed terms.”"¿ (Zullo v. Superior

Court (2011) 197 Cal.App.4th 477, 484 [citations omitted].)¿¿¿¿¿¿¿¿¿¿¿

The court finds that Plaintiff has established a low level of

procedural unconscionability since he has shown that the Arbitration Agreement was drafted entirely by USC, Plaintiff did not

have a meaningful opportunity to negotiate its terms, and Plaintiff was not

told that he could request changes to the agreement, and Plaintiff was not

given any indication that modifications were possible. (Hindoyan Decl., ¶ 3.)

ii.

Substantive Unconscionability

"‘Substantive unconscionability pertains to the fairness of an

agreement’s actual terms and to assessments of whether they are overly harsh or

one-sided.¿ [Citations.]¿ A contract term is not substantively unconscionable

when it merely gives one side a greater benefit; rather, the term must be “so

one-sided as to ‘shock the conscience.’”"¿ (Carmona, supra, 226

Cal.App.4th at p. 85.)¿ "“[T]he paramount consideration in assessing [substantive] unconscionability is mutuality.”’”¿ (Ibid.)¿¿¿

Plaintiff argues that the Arbitration Agreement is unconscionable because it has the same exact language as the agreement in Cook v. University of Southern California (2024) 102 Cal.App.5th 312, in which the Court of Appeal held that: (1) its scope was impermissibly broad, requiring arbitration of “all claims, whether or not arising out of” employment; (2) its duration was effectively infinite, surviving termination and revocable only by the President of the University; and (3) the agreement lacked mutuality, granting USC’s affiliates, employees, agents, trustees, and related entities the right to compel arbitration without any reciprocal obligation. (Cook, supra, 102 Cal.App.5th at pp. 321-328.)

a.

Scope

The court finds that the scope of the Arbitration Agreement is impermissibly broad because it requires the arbitration of “all claims, whether or not arising out of Employee’s University Employment, remuneration or termination.” (Garner Decl., Ex. A at p. 1.) (Cook, supra, 102 Cal.App.5th at p. 325, [“We find the trial court did not err in holding that the agreement's broad scope is substantively unconscionable”].) The Arbitration Agreement’s plain language requires Plaintiff to arbitrate claims that are unrelated to his employment with USC.

Defendants attempt to show that courts have enforced agreements to arbitrate all claims or disputes between parties. However, Defendant mischaracterizes the cases. In Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, the Court addressed whether the delegation clause was substantively unconscionable, not whether the scope of the arbitration agreement was impermissibly broad and thus unconscionable, and the Court does not provide the full text of the arbitration agreement in order for this court to determine the extent to which the agreement at issue there, is similar to the Arbitration Agreement here. (Id. at pp. 247, 250.) In Serafin v. Balco Properties Ltd., LLC (2015) 235 Cal.App.4th 165, 182, the arbitration provision stated that "[a]ny and all claims arising out of or in any way connected with your employment ... must be submitted to binding arbitration." Thus, the arbitration provision was limited to claims arising out of Serafin's employment.

Accordingly, the court finds that the scope of the Arbitration Agreement is impermissibly broad and shows that it is substantively unconscionable.

b.

Duration

The court finds that the duration of the Arbitration Agreement is effectively infinite because it "shall survive the termination of Employee's employment, and may only be revoked or modified in a written document that expressly refers to the 'Agreement to Arbitrate Claims' and is signed by the President of the University." (Garner Decl., Ex. A at p. 2.) (Cook, supra, 102 Cal.App.5th at pp. 325-326.) The plain language of the Arbitration Agreement shows that its infinite duration shows that it is substantively unconscionable because the duration of the Arbitration Agreement can only be modified or terminated by USC's President.

c.

Lack of Mutuality

The court finds that the Arbitration Agreement lacks mutuality because Plaintiff agrees to arbitrate claims against "the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise" but does not require USC's related entities to arbitrate their claims against Plaintiff. (Garner Decl., Ex. A at p. 1.) Thus, there is a one-sidedness that does not allow Plaintiff to enforce the Arbitration Agreement against USC's related entities. The plain language of the

Arbitration Agreement provides a significant benefit to defendants USC Verdugo Hills Hospital, USC Care Medical Group, and Dr. Mo because they can invoke the Arbitration Agreement as third-party beneficiaries, but none of them could be compelled to arbitrate their claims against Plaintiff.

Defendants argue that arbitration agreements only require a modicum of bilaterality and the party with superior bargaining strength may insist on a type of extra protection for itself if it provides at least some reasonable justification for such one-sidedness based on “business realities.” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 117.)

Defendants argue that protecting benefit plans and other individuals that could be named as defendants in a lawsuit filed by an employee falls within the margin of safety that employers may provide themselves in an arbitration agreement because USC has a legitimate commercial need to provide its employees with the same benefits of arbitration it provides itself in order to avoid inconsistent rulings between a court and arbitrator as to claims that could be asserted jointly against USC and a third-party beneficiary and it would be unreasonable for USC to require these third-parties to individually join the Arbitration Agreement. Defendants argue that, like here, where Plaintiff not only sued USC but also Dr. Mo and other entities under the theory that USC and these entities are his joint employers, if the Arbitration

Agreement did not extend to USC's related entities or employees, as it expressly states, there could be inconsistent rulings between an arbitrator as against USC and a court as against all other named defendants. The court finds that, although there is a one-sidedness with the provision allowing USC's other entities to compel arbitration, there is reasonable justification based on business realities.

The court finds that Plaintiff has shown a low level of procedural unconscionability due to the adhesive nature of the Arbitration Agreement and a high level of substantive unconscionability due to the scope and duration of the Arbitration Agreement. Thus, the court finds that the Arbitration Agreement is unconscionable.

4.

Severability

"An unconscionable contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms." (Cook, supra, 102 Cal.App.5th at p. 328–329, internal quotations omitted.)

The court finds that the unconscionability permeated the agreement such that severance is improper because the Arbitration Agreement's main purpose, as expressed in its plain language, is to require Plaintiff to arbitrate all his claims against USC and its related entities for an indefinite period of time, not just employment related disputes, and striking three consecutive words “whether or not” would not cure the unconscionability of the agreement. Rather, striking these words would change the Arbitration Agreement’s purpose and essentially rewrite the Arbitration Agreement to contradict its plain language as the court would be rewriting the scope of the Arbitration Agreement. (Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, 515, [“If the central purpose of the contract is tainted with illegality, then the contract as a whole cannot be enforced”].) In addition, simply striking “whether or not” would not remedy the unconscionable provision of the indefinite duration of the Arbitration Agreement. In order to eliminate the duration unconscionability, the court would have to rewrite the agreement to change the duration of the Arbitration Agreement which would include an augmentation. (Id. at p. 516, [“If the unconscionability cannot be cured by extirpating or limiting the offending provisions, but instead requires augmentation to cure the unconscionability, then the court should refuse to enforce the contract”].) Thus, the court finds that the Arbitration Agreement cannot, in the interest of justice, be severed.

5.

The Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (EFFAA”)

Pursuant to 9 USC § 402 subdivision (a), “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.”

(9 U.S.C. § 402, subd. (a).)

Here, Plaintiff alleges a cause of action for hostile work environment harassment based on gender pursuant to Government Code sction 12900. (Compl., ¶¶ 12(a), (b), (e), 32-39.) Under Government Code section 12940 subdivision (j)(1), it is an unlawful employment practice “[f]or an employer . . . because of . . . sex, gender, gender identity, gender expression . . . to harass an employee.” (Gov. Code, § 12940, subd. (j)(1).) Thus, Plaintiff’s cause of action for hostile work environment harassment based on gender falls within the EFFAA.

Although Defendants argue that Plaintiff failed to state a claim for hostile work environment harassment based on gender, a motion to compel arbitration is not a motion in which a court will determine whether a plaintiff alleged sufficient facts to state a claim.

Accordingly, Plaintiff's complaint is exempted from arbitration. (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 796, ["the plain language of the EFAA exempts a plaintiff's entire case from arbitration where the plaintiff asserts at least one sexual harassment claim subject to the act"]; Id. at p. 803, ["under the EFAA, Liu may not be compelled to arbitrate any of her claims because the 'case' she filed under state law (her superior court lawsuit) 'relates to ... the sexual harassment dispute' in that her complaint contains claims premised on conduct that is alleged to constitute sexual harassment under state law"].)

ORDER

The court denies defendants University of Southern California, Vivian Y. Mo, M.D., USC Verdugo Hills Hospital, and USC Care Medical Group, Inc.'s motion to compel arbitration.

The court orders plaintiff Antreas Hindoyan to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 23, 2026

____

Robert B. Broadbelt III

Judge

of the Superior Court